

M/s Bharat Ice Factory v. The Managing Director And Another

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · WRIT - C No. 18245 of 2022 · **Writ disposed; 6.8 objection with stay of coercive action.**

HEADNOTE

A writ challenging a 15 June 2022 assessment of Rs. 47,15,404 and seeking restoration of supply was disposed of without any opinion on merits. On the licensee's statement, the consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing, preferably within four weeks; coercive action on the demand stayed for eight weeks or till disposal of the objection, whichever earlier.

FACTUAL SUMMARY

M/s Bharat Ice Factory petitioned the Allahabad High Court seeking certiorari to quash an assessment order dated 15 June 2022 issued by the distribution licensee for recovery of Rs. 47,15,404, a mandamus restraining its enforcement, and restoration of electricity supply to the factory. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment — alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging an assessment demand and seeking restoration of supply is disposed of with liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, respondent no. 2 shall decide it in accordance with law after reasonable opportunity of hearing, preferably within four weeks, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against a 6.8 assessment demand disposed by directing a time-bound para 6.8 objection with stay of coercive action pending disposal. ¶ 1

alternative-remedy-statutory-appeal-6.8 High Court declined merits review of the assessment and relegated the consumer to the para 6.8 objection before the assessing officer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT ORDER DATED 15.6.2022

Court expressly declined to opine on merits. ¶ 1

NOT DECIDED — RESTORATION OF ELECTRICITY SUPPLY

Mandamus for restoration not granted; supply left to the 6.8 process. ¶ 1